

25STCV33381 25STCV33381

County: los-angeles

Division: Civil Law and Motion

Department: 508

Hearing date: 2026-07-07

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Case Number: 25STCV33381 Hearing Date: July 7, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department 508

MARIO F. WILLIAMS,

Plaintiff,

vs.

EDWIN BARRON,

Defendant.

Case No.:

25STCV33381

Hearing Date:

July 7, 2026

Hearing

Time: 10:00 a.m.

[TENTATIVE]

ORDER RE:

PLAINTIFF'S MOTION
FOR LEAVE TO AMEND THE COMPLAINT

Background

Plaintiff Mario F. Williams ("Williams") filed this action on November 17, 2025 against Defendant Edwin Barron ("Barron"). The complaint alleges six causes of action for (1) elder abuse, (2) harassment, (3) intentional infliction of emotional distress, (4) wrongful eviction, (5) breach of the covenant of quiet enjoyment, and (6) violations of Los Angeles County Code Rent Stabilization Ordinance (section 8.52.010 et seq).

Williams filed proof of substituted service on January 20, 2026 for Barron. To date, Barron has not engaged in the lawsuit by filing an answer, demurrer, or motion to strike.

Williams moves for leave to file a first amended complaint. No opposition was filed.

Discussion

Pursuant to ζ Code of Civil Procedure section 472, subdivision (a) ζ , "[a] party may amend its pleading once without leave of the court at any time before the answer, demurrer, or motion to strike is filed..." Because Barron has not filed any responsive pleadings, Williams may proceed with filing a first amended complaint as a matter of right. Accordingly, the instant motion is moot because there is no need for Court intervention. Williams may proceed with filing a first amended complaint without leave of the Court.

Conclusion

Based on the foregoing, Williams' motion for leave to file an amended complaint is DENIED as MOOT.

Williams is ordered to give notice of this Order.

DATED: July 7, 2026

Hon. Teresa A.
Beaudet

Judge, Los
Angeles Superior Court